



Data Retention and Deletion Policy



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Table of Contents

1.	PURPOSE.....	1
2.	SCOPE	1
3.	DEFINITIONS	1
4.	ROLES AND RESPONSIBILITIES	2
5.	POLICY	2
5.1.	REASONS FOR DATA RETENTION.....	2
5.2.	RETENTION PERIODS	2
5.3.	CLIENT SPECIFIC DATA RETENTION.....	6
5.4.	DATA SUBJECT RIGHTS COMPLIANCE.....	7
5.5.	SECURE DISPOSAL	7
5.6.	EXCEPTIONS	7
5.7.	LITIGATION HOLD REQUIREMENTS.....	7
6.	ENFORCEMENT	8
7.	REVISION HISTORY	9

1. Purpose

This Data Retention Policy establishes the principles and processes for retaining, managing, and securely disposing of data. It ensures compliance with applicable laws, regulations, and organizational requirements while balancing operational needs.

The Company collects, processes, and transfers Personal Information of Employees in connection with its human resources activities. The Company is committed to complying with the EU General Data Protection Regulation (“GDPR”), including the GDPR as it forms part of the laws of England, Wales, and Northern Ireland by virtue of Section 3 of the European Union (Withdrawal) Act 2018 (“UKGDPR”), the Swiss Federal Act on Data Protection (“FADP”), and all data protection laws, labor laws, and collective agreements regarding the Personal Information of Employees in the countries in which it employs employees and does business (the “Data Privacy Requirements”).

This policy also governs the retention and deletion of AI-related data, including AI training data, user inputs (e.g., prompts, queries), outputs, and model artifacts. Such data will only be retained for as long as necessary to fulfill its intended purpose, and will be subject to secure disposal or anonymization in compliance with applicable Data Privacy Requirements.

Additional information regarding the Company’s processing of the Personal Information of Residents of the State of California, Australia, Jamaica, and the United Arab Emirates is available at the addenda “Privacy Rights of California Residents”, “Privacy Rights of Australia Residents”, “Privacy Rights of Jamaica Residents”, and “Privacy Rights of United Arab Emirates Residents.”

2. Scope

This policy applies to all employees, contractors, and third parties who create, access, process, or manage the organization's data. It covers all types of data, including electronic and physical formats, across all business operations.

3. Definitions

This section defines key terms used in the policy to ensure clarity and consistency.

Term	Definition
Backup Data	Copies of data stored separately for disaster recovery purposes.
Data Subject	An individual whose personal data is collected, processed, or retained by the organization.
Personal Information (PI)	Any information that identifies or relates to an identifiable individual (employee, resident, customer, client, etc).
Retention Period	The duration for which data is stored before being securely disposed of or anonymized.
Secure Disposal	Methods of permanently removing or destroying data to prevent recovery.

4. Roles and Responsibilities

Role	Responsibility
Data Owners	Identify and document data retention periods for their respective data types.
Compliance and Risk Management	Monitor adherence to retention schedules and ensure the policy aligns with regulatory updates.
IT Team	Implement technical measures for secure data storage and disposal.
Employees	Follow retention guidelines and report any deviations or issues to the Compliance Team.

5. Policy

The organization is committed to retaining data only for as long as it is needed for legal, regulatory, or operational purposes.

Data no longer required must be securely disposed of or anonymized to protect confidentiality and comply with applicable regulations.

5.1. Reasons for Data Retention

5.1.1 Ibex retains only that data that is necessary to effectively conduct its program activities, fulfill its mission and comply with applicable laws and regulations.

5.1.2 Reasons for data retention include:

5.1.2.1 Providing an ongoing service to the data subject (e.g., sending a newsletter, publication or ongoing program updates to an individual, ongoing training or participation in Ibex's programs, processing of employee payroll and other benefits)

5.1.2.2 Compliance with applicable laws and regulations associated with financial and programmatic reporting by the company to its funding agencies and other donors

5.1.2.3 Compliance with applicable labor, tax and immigration laws

5.1.2.4 Other regulatory requirements

5.1.2.5 Security incident or other investigation

5.1.2.6 Intellectual property preservation

5.1.2.7 Litigation

5.2. Retention Periods

5.2.1 Data will be retained according to the following general categories:

Type	Jurisdiction(s)	Retention Period	Key Considerations
Employee Records (HR)	Global (e.g., UK, EU, US, PH, Dubai, Bermuda, etc.)	Up to 10 Years: Varies by jurisdiction (e.g., UK & EU: 6-10 years; US IRS: 3-6 years; PH/Dubai/Bermuda: "As long as necessary"	Adhere to purpose limitation, and respecting employee rights.

Customer Data (General)	GDPR, CCPA, PH, JDPA, Dubai, Bermuda	GDPR/JDPA: Retain only as long as necessary for processing purposes. CCPA: Avoid indefinite retention unless justified. PH/Dubai/Bermuda/Jamaica: Purpose-driven retention with secure disposal afterward.	Ensure data is retained only as long as needed for its intended purpose. Include clients in deletion workflows.
Healthcare Data (PHI/ePHI)	GDPR, HIPAA, PH, JDPA, Dubai, Bermuda	Up to 10 Years: Depending on jurisdiction. UK & EU: "As long as necessary, typically a minimum of 5 years." US HIPAA: 6 - 10 years. PH/Dubai/Bermuda/Jamaica: "Retention is based on necessity". * Minimum 6 Years; Up to 10 Years depending on jurisdiction or contractual requirements	Ensure data is retained only for the period required by regulatory or medical necessity. Where healthcare services support government healthcare programs (Medicaid, Medicare) or where client contracts require longer retention, the retention period defined under the Government Healthcare Program Data and Records category shall apply.
Financial Data	GDPR, CCPA, PH, JDPA, Dubai, Bermuda	Up to 10 Years: Depending on jurisdiction. UK & EU: "As long as necessary, typically 5-10 years." US: 6-7 years. PH/Dubai/Bermuda/Jamaica: "Retention is based on necessity".	Retention for the period required by legal or financial obligations.
Call Recordings (Customer Support)	GDPR, CCPA, PH, JDPA, Dubai, Bermuda	Up to 5 Years: Depending on jurisdiction. UK & EU: 6 months to 2 years. US: 1-2 years. PH/Dubai/Bermuda/Jamaica: "Retention is based on necessity".	Ensure data is retained for the period necessary for legal, regulatory, or operational purposes.
Incident Reports (Data Breaches)	GDPR, CCPA, PH, JDPA, Dubai, Bermuda	Up to 6 Years: Depending on jurisdictional audit and litigation requirements. UK & EU: 2 years. US: 2-6 years. PH/Dubai/Bermuda/Jamaica: "Retention is based on necessity".	Retain reports for the minimum period required for legal and regulatory compliance, documenting the investigation process and outcomes.

Vendor and Partner Agreements	GDPR, CCPA, PH, JDPA, Dubai, Bermuda	Up to 10 Years: Post-expiry, based on jurisdictional contract laws. UK & EU: 5-10 years. US: 6-7 years. PH/Dubai/Bermuda/Jamaica: "Retention is based on necessity".	Ensure data and documents are retained for the period required for legal obligations.
Data Subject Requests (DSRs)	GDPR, CCPA, PH, JDPA, Dubai, Bermuda	Up to 3 Years: Document fulfillment of rights (e.g., access, deletion requests). UK & EU: At least year. US: 1-3 years. PH/Dubai/Bermuda/Jamaica: "Retention is based on necessity".	Ensure requests are processed promptly (usually within 1 month for GDPR), retaining records of requests for auditing purposes.
Employee Monitoring Data	GDPR, CCPA, PH, JDPA, Dubai, Bermuda	Up to 3 Years: Retain for compliance audits and only if necessary. UK & EU: 3-6 months. US: 1-5 years. PH/Dubai/Bermuda/Jamaica: "Retention is based on necessity".	Ensure that monitoring is justified, proportionate, and documented, retaining data for the minimum time necessary.
Backup and Logs (IT Systems)	GDPR, CCPA, PH, JDPA, Dubai, Bermuda	Operational Backups: 30–60 days (90 days maximum) Security / Audit Logs: Up to 7 Years: As required by law, client contract, or security standards; rotate and purge backups periodically unless otherwise justified. UK & EU: 1-5 years. US: 1-7 years. PH/Dubai/Bermuda/Jamaica: "Retention is based on necessity".	Ensure backup data is retained primarily for disaster recovery and business continuity purposes. Backup copies may remain until they are automatically removed through standard backup rotation cycles. Backup data will not be used for operational access or routine data retrieval, except during authorized recovery or incident response activities.
Contractual Data (Client Agreements)	GDPR, CCPA, PH, JDPA, Dubai, Bermuda	Up to 10 Years: Depending on jurisdiction. UK & EU: 5-10 years. US: 6-7 years. PH/Dubai/Bermuda/Jamaica: "Retention is based on necessity".	Ensure retention of agreements for the required period to address legal or business needs.

Documented Information (Policies, Procedures, Compliance Records)	Global (e.g., ISO 27001, GDPR, CCPA, local laws)	Up to 10 years: Depending on jurisdiction. UK & EU: 5–10 years. US: 3–7 years. PH/Dubai/Bermuda/Jamaica: "Retention is based on necessity".	Ensure the availability of documented information for audits, certifications, and legal obligations.
AI Model Artifacts and System Data (e.g., model versions, embeddings, configuration files, evaluation datasets, system logs)	Global (subject to local data protection laws)	Up to 10 Years: Depending on jurisdiction. UK & EU: 5-10 years. US: 6–7 years. PH/Dubai/Bermuda/Jamaica: "Retention is based on necessity".	Ensure AI model artifacts and operational records are only retained as long as necessary to support system functionality, auditability, regulatory compliance, and model lifecycle management. Where possible, ensure such data does not contain personal or sensitive client information.
AI Prompts and Outputs	Global (subject to local data protection laws)	30–90 Days unless required longer for operational, audit, or contractual purposes.	AI prompts and outputs should not contain sensitive client data unless contractually required. Where feasible, prompts and outputs should be anonymized, aggregated, or de-identified to minimize privacy risks.
AI Training Data	Global (subject to local data protection laws)	As long as necessary for model training and improvement, subject to anonymization requirements	Where possible, training datasets should consist of anonymized or de-identified data. Retention of raw personal data should be avoided unless contractually required and protected under appropriate security and privacy controls.

Government Healthcare Programs Data and Records	CMS, Federal and State Healthcare Program Regulations (e.g., Medicaid, Medicare), Managed Care Organization (MCO) Contracts, State Medicaid Agencies (e.g., KY DMS, NJ FamilyCare)	Minimum 10 Years from contract termination, completion of services, or resolution of any audit, investigation, or litigation—whichever is later.	Applies to all operational, compliance, and program records supporting government healthcare programs, including PHI, call records, member interactions, audit documentation, training records, fraud, waste and abuse documentation, and regulatory correspondence. Records must be retained and made available to clients, federal agencies (CMS, HHS-OIG), and state regulators upon request.
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- 5.2.2 These retention periods are established to ensure compliance with relevant data protection regulations, including the GDPR, CCPA, JDPa and the Data Privacy Act (DPA) of the Philippines.
- 5.2.3 Retention periods apply for both physical and electronic documents, including documents, files, databases, emails and other forms of stored information maintained by the Company.
- 5.2.4 Where multiple retention requirements apply to the same data (e.g., legal, regulatory, contractual, audit or litigation hold requirements), the Company will retain the data for the longest applicable retention period required by law, regulation, client contract, or legal hold. Data subject to a legal hold must not be deleted or destroyed until the hold is formally released.

5.3. Client Specific Data Retention

The organization recognizes that client-specific data retention requirements may differ due to contractual obligations or regulatory standards. To ensure compliance:

- 5.3.1 All client-specific data retention requirements will be documented in service-level agreements (SLAs) or equivalent contracts.
- 5.3.2 Data processing, storage, and disposal will align with these client-specific requirements.
- 5.3.3 Clients will be consulted before any deviation from agreed retention schedules.
- 5.3.4 Regular audits will verify adherence to client-specific retention policies.
- 5.3.5 Currently requires SLAs or contracts to govern retention.
- 5.3.6 Ibex will maintain a central register of client-specific retention deviations to avoid fragmentation and for audit readiness.
- 5.3.7 The Company shall maintain an inventory of data assets and processing activities to ensure that retention rules are properly implemented and monitored.
 - 5.3.7.1 Retention schedules defined in this policy must be mapped to specific systems, repositories, or datasets where data is stored or processed.

5.3.7.2 The data inventory and associated retention mappings shall be reviewed periodically, at least annually, to ensure continued compliance with regulatory, contractual, and operational requirements.

5.3.8 Where client contractual obligations impose stricter retention or deletion requirements than those defined in this policy, the client contractual obligations shall prevail, provided they remain compliant with applicable law and regulatory requirements.

5.4. Data Subject Rights Compliance

To uphold the rights of data subjects under GDPR, CCPA, and similar regulations:

5.4.1 Requests for access, rectification, or erasure of data will be processed within the legally mandated timelines.

5.4.2 A record of all requests and their outcomes will be maintained for at least 2 years.

5.4.3 Employees handling data subject requests will be trained on applicable regulations to ensure accurate and compliant responses.

5.5. Secure Disposal

When data reaches the end of its retention period:

5.5.1 Digital data must be deleted using secure methods, ensuring it cannot be recovered.

5.5.2 Physical data must be shredded, pulped, or otherwise destroyed.

5.5.3 Disposal processes must be documented and monitored for compliance.

5.6. Exceptions

Exceptions to this policy may be granted for ongoing litigation, audits, or specific regulatory requirements. Any exception must be approved by the Compliance Team and documented.

5.7. Litigation Hold Requirements

5.7.1 In the event of a litigation hold issued by Ibex Legal, all employees and applicable third parties must preserve any relevant data subject to the hold, regardless of existing retention schedules.

5.7.2 Data subject to litigation hold must be retained indefinitely until the legal hold is formally released in writing by the initiating Ibex attorney.

5.7.3 Employees must not delete, alter, or otherwise dispose of any data covered by the hold unless and until you receive written confirmation that the hold has been lifted.

5.7.4 The attorney who issued the legal hold is responsible for notifying you of its removal. If the issuing attorney is no longer with Ibex, written approval from the Chief Legal Officer (CLO) before taking any action to release or delete such data.

5.7.5 Litigation holds override all automated or scheduled deletion processes. Where necessary, the Legal Department may require system-level preservation measures to ensure that relevant records are protected from modification or deletion.

5.7.6 Employees, system owners, and data owners must confirm compliance with litigation hold notices and cooperate with Legal in implementing preservation requirements.

5.7.7 Failure to comply with litigation hold requirements may result in disciplinary action and may expose the organization to legal or regulatory consequences.

6. Enforcement

Failure to comply with any or all the provisions stated in this policy shall warrant appropriate disciplinary action in accordance with Ibex's Code of Business Conduct, applicable Human Resources policies, and employee disciplinary procedures.

Any suspected violation of this policy will be investigated through the Company's established investigation procedures, which may involve the Compliance, Information Security, Legal, and Human Resources departments as appropriate.

Where violations involve willful misconduct, negligence, or failure to comply with regulatory requirements, disciplinary action may include corrective action, suspension of system access, or other employment-related consequences in accordance with applicable laws and internal policies.

7. Revision History

Version	Date	Details of Changes	Change By	Reviewed By	Approved By
1.0	12/13/2024	Created the document	Lloyd Macatangay	Mubsshar Ismail Muqheet Kamal Jason Malmberg Sandra Fernandez	Christy O'Connor Andreas Wilkens Paul Inson
2.0	08/07/2025	Updated the Purpose section Updated the Retention Period sections to include Documented Information, and AI Data Updated the Client Specific Data Retention section to include that Ibex will maintain a central register	Lloyd Macatangay	Sandra Cordray Jason Malmberg	Christy O'Connor Paul Inson

Version	Date	Details of Changes	Change By	Reviewed By	Approved By
3.0	03/16/2026	Added ISO 42001 in the Document Information Added/Updated retention period details for: - Backup and Logs (IT Systems) - AI Model Artifacts and System Data - AI Prompts and Outputs - AI Training Data - Government Healthcare Programs Data and Records Added/Updated the following provisions: - Requirement to maintain data inventory - Client contract obligations supersede internal retention period - Litigation hold requirements	Lloyd Macatangay	Sandra Cordray Jason Malmberg	Christy O'Connor Paul Inson Michael Ringman